

Comparing sharia and secular approaches to religious freedom

Analysis run: September 12, 2026

PROVIDER

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MODEL

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TEMPERATURE

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SYSTEM PROMPT

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USER PROMPT

Write a concise, self-contained article entry for the title: "Comparing sharia and secular approaches to religious freedom".

Overall topic for alignment: Rights of religious and sectarian minorities in sharia.

Important points to cover: Include Arabic terms, historical contexts, quranic foundations of sharia, minority and majority settings, Islamic theological schools, Islamic juristic schools of Hanafi, Hambali, shafi'i and Malaki, orientalist perspective, AI's humanistic approach to sharia, Human rights declaration..

- Output format: GitHub-Flavored Markdown. The markdown must be clean—do not include any code fences or surrounding markers. Target writing format: Blog Post. Follow these format-specific rules exactly:
- Aim for at least 6000 characters while staying under 12000. Prefer verifiable facts from the provided sources; do not fabricate citations or specific data.
- Place external links only in the "References" section; do not include inline external links in the body text.
- Maximum content length (including headings and references): 12000 characters. If nearing the limit, prioritize the most informative sections and keep references to 2-3.
- Write in the target response language. Avoid fluff; be precise and actionable. Do not include images or tables.
- Do not include code fences or any text outside the markdown content.

No external web sources are attached. Do not fabricate citations or specific facts that cannot be verified. Keep claims general and verifiable. In the 'References' section, include: "No external sources used."

****Respond in English****

SUMMARY

Summary: Comparing Sharia and Secular Approaches to Religious Freedom

Foundations. Secular religious freedom derives from Enlightenment principles and instruments like the UDHR (1948), Article 18, emphasizing state neutrality and individual autonomy. Sharia draws from the Qur'an, Sunnah, *ijmā'*, and *qiyās*, with key verses ("no compulsion in religion," 2:256; "to you your religion," 109:6) grounding tolerance—though classical jurisprudence translated these into structured rules distinct from modern equality.

Historical model. Premodern Islamic polities used the *dhimmī* system: non-Muslim "People of the Book" paid *jizya* in exchange for protection, communal autonomy, and self-administered law (formalized in the Ottoman *millet* system). This was protective by premodern standards but not equal citizenship, with varying restrictions on worship and office-holding.

Internal plurality. The four Sunni schools differ on minority rights: Hanafī (most accommodating), Mālikī (broad *dhimma* application), Shāfi'ī (more restrictive), Ḥanbalī (most textually conservative). Shi'i (Ja'fari) jurisprudence developed parallel rulings. Theological schools (Ash'arī, Māturīdī, Mu'tazilī) shape interpretation; Mu'tazilī rationalism is often invoked by reformers on apostasy and conscience.

Modern contexts. *Fiqh al-aqalliyyāt* guides Muslims in non-Muslim-majority states toward respecting secular law. In sharia-influenced states (Saudi Arabia, Iran, Pakistan, parts of Nigeria), non-Muslims and dissenting sects (Ahmadis, Baha'is) face restrictions diverging from secular norms.

Scholarly debate. Orientalist scholarship (Goldziher, Schacht, Lewis) was critiqued by Said (1978) for essentializing Islam. Internal reformers (Abou El Fadl, An-Na'im, Hallaq) reinterpret sharia toward human rights compatibility.

Convergence/tension. Both reject coerced belief and accept public-order limits. Key tensions: apostasy (criminalized classically vs. protected by UDHR), formal equality, proselytism, and blasphemy.

Humanistic reading. Reformists invoke *maqāṣid al-sharī'a* (protecting life, intellect, religion, lineage, property), treating medieval rulings as historically contingent. The 1990 Cairo Declaration attempted a sharia-framed rights articulation but remains contested.

Conclusion. The comparison is not binary; both traditions are internally plural living systems, requiring source-grounded analysis beyond Orientalist or apologetic caricature.

Comparing Sharia and Secular Approaches to Religious Freedom

Religious freedom is a cornerstone of modern human rights discourse, yet its meaning, scope, and limits vary significantly between legal traditions. Comparing the sharia (شريعة) framework with secular constitutional models reveals two distinct philosophical anchors: one rooted in divine revelation and historical jurisprudence, the other in Enlightenment-era notions of individual autonomy and state neutrality. This article surveys both approaches, with particular attention to how the rights of religious and sectarian minorities are conceived under Islamic law.

Foundations: Where Each System Begins

Secular approaches to religious freedom generally derive from documents such as the Universal Declaration of Human Rights (UDHR, 1948), particularly Article 18, which affirms the freedom of thought, conscience, and religion, including the right to change one's belief. The state, under most secular models, remains neutral toward religious doctrine and protects the individual's right to believe, practice, or abstain.

Sharia, by contrast, draws its authority from the Qur'an, the Sunnah (سنة) of the Prophet Muhammad, scholarly consensus (ijmā', إجماع), and analogical reasoning (qiyās, قياس). Several Quranic verses are foundational to discussions of religious coexistence:

- **"Lā ikrāha fī al-dīn"** (لا إكراه في الدين) — "There is no compulsion in religion" (Qur'an 2:256).
- **"Lakum dīnukum wa-liya dīn"** (لكم دينكم ولي دين) — "To you your religion, and to me mine" (Qur'an 109:6).

These verses are often cited as the Quranic basis for tolerating religious diversity. However, classical jurisprudence translated such principles into a structured legal framework that differs significantly from modern secular conceptions of equality before the law.

Historical Context: The Dhimmī System

In premodern Islamic polities — from the Rashidun and Umayyad caliphates through the Abbasid, Mamluk, and Ottoman eras — non-Muslim "People of the Book" (ahl al-kitāb, أهل الكتاب), primarily Jews and Christians, lived as *dhimmīs* (ذميون), protected subjects who paid the *jizya* (جزيّة) tax in exchange for security, communal autonomy, and exemption from military service. Within their

communities, they generally administered their own family law, religious courts, and educational institutions.

This system, while protective by premodern global standards, was not based on equal citizenship. Restrictions varied across regions and dynasties but could include limitations on building new houses of worship, public religious displays, or holding certain offices. The Ottoman *millet* system formalized communal autonomy and is sometimes cited as an early example of legal pluralism.

By contrast, modern secular states — especially after the French and American revolutions — moved toward formal legal equality regardless of religion, eliminating distinct legal statuses tied to confession.

The Four Sunni Juristic Schools

Classical Sunni jurisprudence developed through four major schools (madhāhib, مذاهب), each with nuanced positions on minority rights:

- **Hanafi** (حنفي): Generally the most accommodating regarding non-Muslim residents (dhimmīs and musta'minūn, temporary visitors). Permits broader categories of non-Muslims, beyond Jews and Christians, to fall under the dhimma contract.
- **Mālikī** (مالكي): Predominant in North and West Africa; historically permitted dhimma agreements with diverse groups, including Zoroastrians and others, depending on regional practice.
- **Shāfi'ī** (شافعي): Tended to restrict the dhimma contract more narrowly to ahl al-kitāb, with detailed rulings on public conduct.
- **Ḥanbalī** (حنبلي): Often regarded as the most textually conservative; produced influential treatises (e.g., by Ibn Qayyim al-Jawziyya) on the legal status of non-Muslims.

Shi'i jurisprudence (notably the Ja'farī school) developed parallel rulings, with its own treatment of minorities and intra-Muslim sectarian relations.

These differences matter: contemporary debates about reforming or reinterpreting sharia often draw on the diversity within the tradition itself, rather than treating it as monolithic.

Theological Schools and Their Relevance

Islamic theology (kalām, كلام) developed multiple schools — Ash'arī, Māturīdī, and Mu'tazilī among Sunnis, and various Shi'i theological currents. The Mu'tazila, with their emphasis on reason and human moral agency, are sometimes invoked by modern reformers seeking interpretive flexibility on questions like apostasy (ridḍa, ردة) and freedom of conscience. The Ash'arī tradition, dominant historically, tended toward textual adherence but also incorporated rational tools. These theological commitments shape how jurists interpret scriptural texts related to religious freedom.

Minority and Majority Settings

A crucial distinction in modern Islamic legal thought is between Muslims as a majority and as a minority. *Fiqh al-aqalliyyāt* (فقه الأقليات), or "jurisprudence of minorities," emerged in the late 20th century to address Muslims living in non-Muslim-majority states. It generally accepts that Muslims should respect the laws of the secular states in which they reside, suggesting a pragmatic accommodation to pluralism.

Conversely, where sharia informs state law — as variably in Saudi Arabia, Iran, Pakistan, parts of Nigeria, and elsewhere — non-Muslims and dissenting Muslim sects (such as Ahmadis, Baha'is, or, in some contexts, Shi'a or Sunni minorities) face legal regimes that diverge from secular standards of equal religious liberty.

The Orientalist Lens and Its Critics

Nineteenth- and twentieth-century Orientalist scholarship — represented by figures like Ignaz Goldziher, Joseph Schacht, and Bernard Lewis — produced influential, sometimes contested, analyses of Islamic law. Critics, most prominently Edward Said in *Orientalism* (1978), argued that Western scholarship often essentialized Islam as static, monolithic, or inherently incompatible with modern freedoms. Contemporary scholars from within the Muslim world — including Khaled Abou El Fadl, Abdullahi An-Na'im, and Wael Hallaq — have developed more internal critiques, exploring how sharia can be reinterpreted or reformed to align with contemporary human rights standards while remaining authentic to its sources.

Points of Convergence and Tension

Convergences:

- Both traditions affirm, at least in principle, that belief cannot be coerced.
- Both have historical mechanisms (millet, communal autonomy; modern minority rights) for protecting group identity.
- Both recognize public order as a legitimate limit on religious expression.

Tensions:

- Apostasy: Classical sharia widely treated apostasy as a serious offense; the UDHR explicitly protects the right to change one's religion.
- Equality: Secular frameworks demand formal equality among believers and non-believers; classical sharia distinguishes between Muslims, dhimmīs, and others.
- Proselytism: Secular states generally protect missionary activity; many Muslim-majority states restrict it, particularly when directed at Muslims.

- Blasphemy: Classical jurisprudence treats certain speech as punishable; secular human rights norms generally protect even offensive expression, with narrow exceptions.

A Humanistic Reading

A humanistic approach to sharia — emphasized by reformist scholars — focuses on the higher objectives of Islamic law (maqāṣid al-sharīʿa, مقاصد الشريعة): the protection of life, intellect, religion, lineage, and property. Reading these objectives in light of contemporary realities, some scholars argue, supports robust protections for freedom of conscience, equal citizenship, and the dignity of minorities. This interpretive move treats medieval rulings as historically situated rather than eternally binding, distinguishing between unchanging ethical principles and contingent legal forms.

The 1948 Universal Declaration of Human Rights remains the benchmark for international comparison, while the 1990 Cairo Declaration on Human Rights in Islam attempted to articulate human rights within a sharia framework — itself a contested document, criticized by some for subordinating rights to sharia interpretations, and defended by others as a culturally grounded complement.

Conclusion

The comparison between sharia and secular approaches to religious freedom is not a binary contest but a complex dialogue across centuries, schools, and political contexts. Sharia is internally plural — shaped by Quranic foundations, four major Sunni juristic schools (Hanafī, Mālikī, Shāfiʿī, Ḥanbalī), Shiʿi jurisprudence, and diverse theological traditions. Secular frameworks are likewise varied, from strict laïcité to multicultural accommodation. Productive engagement requires moving beyond caricature — whether Orientalist or apologetic — toward careful, source-grounded comparison that takes both traditions seriously as living systems capable of evolution.

SEGMENTED DATA (1)

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